

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2023-004634

BETWEEN:

METROPOLITAN PROPERTY HOLDINGS LTD

Appellant

- and -

ARTISAN COFFEE CO LTD

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent seeks relief from forfeiture and contends that the Appellant has waived the right to forfeit, that the alleged breaches have been remedied, and that it would be inequitable to grant possession.

B. RELEVANT FACTS

2. The Respondent's business was severely affected by the Covid-19 pandemic and subsequent trading conditions.
3. The Appellant accepted rent payments after becoming aware of the alleged breaches, constituting waiver.
4. The alterations complained of are reversible and do not materially affect the premises.
5. The Respondent has made substantial investment in the premises including a new shop front.
6. The Respondent has now cleared the rent arrears in full.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Landlord and Tenant Act 1954, Part II
 - Law of Property Act 1925, s.146

D. SUBMISSIONS

8. The Appellant has waived the right to forfeit by accepting rent with knowledge of the breaches.

9. The breaches have been remedied and the arrears cleared.
10. It would be inequitable to grant forfeiture given the Respondent's substantial investment.
11. Relief from forfeiture should be granted on appropriate terms.

E. AUTHORITIES

12. The following authorities are relied upon:

- Shiloh Spinners Ltd v Harding [1973] AC 691
- Ropemaker Properties Ltd v Noonhaven Ltd [1989] 2 EGLR 50
- Freifeld v West Kensington Court Ltd [2015] EWCA Civ 806

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Relief from forfeiture
- Alternatively, time to remedy any subsisting breaches
- Costs

Sarah Wilson KC

Sarah Roberts

13 December 2020

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